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File No.: EXP202303092

RESOLUTION OF FILE OF ACTIONS

From the actions carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On February 6, 2023, A.A.A. filed a complaint with entry registration number REGAGE23e00007593451 before the Spanish Agency for Data Protection against the COMMUNITY OF OWNERS ***COMMUNITY.1 with NIF ***NIF.1. The reasons for the complaint are as follows: The complainant claims against the community of owners to which they belong for publishing on the notice board (open) located in the portal, next to the mailboxes, a copy of the minutes of the extraordinary urgent meeting held on 14/12/2022, where the complainant's data is not included, and a list of transactions from the community's current account, where names, surnames, and properties of the orderers and recipients of transfers from the current account of the aforementioned community can be seen, with handwritten signatures on each of its pages.

On the other hand, they attach the minutes of the ordinary general meeting held on 25/01/2023, where it is noted that the son and representative of the complainant requested, through a written document, that communications related to their mother be sent to them by email.

It is also recorded in said minutes that, by default, all convocations or necessary information are placed on the community's notice board and that there is a WhatsApp group, to which all owners belong except the complainant, who has not wanted to integrate, which facilitates communication and work, and which was approved in the meeting.

Furthermore, the complainant alleges that the dismissed administrator sent them all the community information via WhatsApp, including a copy of the minutes of the ordinary general meeting held on 25/01/2023, and that they have never signed consent for the processing of their data.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), the aforementioned complaint was forwarded to the community of owners Rúa Illas Cíes 1, for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) by electronic notification, was not collected by the responsible party within the availability period, being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP on March 21, 2023, as stated in the certificate in the file.

Although the notification was validly carried out by electronic means, considering the procedure completed in accordance with the provisions of Article 41.5 of the LPACAP, an informational copy was sent by postal mail, which was duly notified on April 5, 2023. In this notification, they were reminded of their obligation to communicate electronically with the Administration, and they were informed of the means of access to such notifications, reiterating that, henceforth, they would be notified exclusively by electronic means.

THIRD: On May 6, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed was admitted for processing.

FOURTH: On May 8, 2023, a written response was received from the president of the Community of Owners regarding the information that had been requested concerning file EXP20230309.

In this document, it is stated that the community is made up of ten neighbors and that they all know each other by name and know the home occupied by each one, data that, on the other hand, appears on the mailboxes and, in some cases, on the doors of the homes.

The owners deposit the fees into the community's current account, which only provides them with the account number. Each owner, freely, indicates to their bank in the concept of the deposit to include their name, or the property, or both. These data are what appear on the bank statement.

On the other hand, the notice board has traditionally displayed the Call for Meetings, and more recently, the Balance Sheet for the Year and the Budget for the following year.

The president of the community is not aware that any account statement has been placed on the notice board, next to the mailboxes, in the access portal to the homes, but it was provided to the complainant.

The aforementioned notice board is open, as can be seen in the photographs provided by the complainant.

It is also noted in the document that the complainant does not reside in the building.

Another issue referenced is the complainant's request to receive community notifications at their email address. The president of the community states that they received it via SMS and it went directly to the "spam" folder, as was verified in the Ordinary Meeting of 25-01-2023. Since it was an anonymous communication, as the complainant's phone number is not saved in the president's phone contacts, the SMS was categorized as "spam."

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LEGAL GROUNDS

I

Competence

In accordance with the functions conferred upon each supervisory authority by Article 57.1 a), f), and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In the present case, according to the provisions of Article 4.1 of the GDPR, there is evidence of the processing of personal data, since the Community of Property Owners Rúa Illes Cies, 1 carries out, among other processes, the use/dissemination of the following personal data of individuals, such as: names and surnames and addresses of the co-owners, as well as the telephone number for sending messages via the WhatsApp application.

The community of property owners acts as the data controller, by virtue of Article 4.7 of the GDPR. There is no record of it having a data protection officer.

Within the principles of processing provided for in Article 5 of the GDPR, the integrity and confidentiality of personal data is guaranteed in section 1.f) of Article 5 of the GDPR and the accuracy of the data in section 1.d).

III

Art. 5.1 f)

Article 5 "Principles relating to processing" of the GDPR establishes:

"1. Personal data shall be:

(...)

f) processed in a manner that ensures appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, through the application of appropriate technical or organizational measures ('integrity and confidentiality')."

The dissemination of personal data in unrestricted access areas for the owners, on the walls of the portals or on common use boards, could violate data protection regulations. However, the responsibility for any potential infringement could only be determined if there were any evidence to

establish who disseminated the personal data. In particular, if the affected document had been placed, outside of the legally provided cases, on a locked board whose custody was exclusively assigned to its governing bodies, it would be the Community of Property Owners, constituted by all its members and not just the individuals representing it, that would assume all effects of responsibility for a possible infringement of data protection regulations.

This is not the case with the complaint received where the notice board is open, and although it could have been manipulated by any other member of the community, the president acknowledges placing on that board the call for meetings, the balance sheet for the year, and the budget for the year, but not an extract of the community account containing personal data, which he does acknowledge having provided to the complainant.

The information contained in that account extract is the name of the owner and the apartment (in some cases, the name does not even appear, the entry simply refers to the apartment) and confirms the payment of the fee and the date of that payment. There is no other information that is not present in the mailboxes or on the doors of each dwelling.

It is not necessary for the owners to consent to the use of their own personal data within the internal scope of the Community. In this regard, the First Section of the Administrative Litigation Chamber of the National Court in Judgment of 14/04/2008, issued in appeal 379/2006, understood that it is legitimate to provide members with information about the management of matters that are of common interest to the Community, as long as the dissemination of personal data does not exceed the limited scope of the associative relationship inherent to the Community, and there are no sufficient documentary indications of a violation of the principle of confidentiality in the present case.

It has not been established that the community of property owners Rúa Illes Cies 1 acted negligently or, much less, with intent on its part; therefore, it cannot be understood that there has been an infringement of Article 5.1.f) GDPR.

VII

Conclusion

Therefore, based on the information provided in the previous paragraphs, no evidence has been found to substantiate the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

All of this is without prejudice to any subsequent actions that this Agency may carry out, applying the investigative and corrective powers it holds.

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Thus, as it has not been possible to attribute responsibility for the processing as indicated by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO PROCEED WITH THE FILING of the present proceedings.

SECOND: TO NOTIFY this resolution to the COMMUNITY OF PROPERTY OWNERS RUA ILLAS CIES 1 and to the complaining party.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of the LPACAP, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may, optionally, file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Litigation Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Litigation Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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